

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sruthi Venigalla	Team: Squad #13	CCRB Case #: 201409187	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 09/05/2014 11:00 PM	Location of Incident: Opposite of § 87(2)(b)	18 Mo. SOL 3/5/2016	Precinct: 120
Date/Time CV Reported Fri, 09/05/2014 11:31 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 09/05/2014 11:31 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Schneider	31685	953383	120 PCT
2. POM Philip Iacovino	31528	952876	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Robert Fisher	02936	940144	120 PCT
2. SGT Joseph Marcello	4247	943519	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Schneider	Abuse: PO Joseph Schneider stopped § 87(2)(b)	A . Exonerated
B . POM Philip Iacovino	Abuse: PO Philip Iacovino stopped § 87(2)(b)	B . Exonerated
C . POM Philip Iacovino	Abuse: PO Philip Iacovino refused to provide his name and shield number to § 87(2)(b)	C . Unsubstantiated
D . POM Philip Iacovino	Discourtesy: PO Philip Iacovino spoke rudely to § 87(2)(b)	D . Unsubstantiated

Case Summary

On September 5, 2014, at approximately 11 p.m., § 87(2)(b) and his brother, § 87(2)(b) approached a § 87(2)(b) boy, identified by the investigation as § 87(2)(b) in the vicinity of § 87(2)(b) in Staten Island. According to § 87(2)(b) § 87(2)(b) threatened him with a knife in an attempt to steal his bicycle. § 87(2)(b) rode away on his bicycle and informed his mother, § 87(2)(b) of the incident and she called 911.

Two officers, identified by the investigation as PO Joseph Schneider and PO Phillip Iacovino of the 120th Precinct, approached § 87(2)(b) and § 87(2)(b) in a marked patrol car, and parked in such a way that prevented them from walking away (**Allegations A and B**). § 87(2)(b) stated that he was only grabbed and handcuffed, but at the time of his statement, PO Iacovino said that § 87(2)(b) who resisted and attempted to flee, was forced to the ground when he was “swept” out under his legs. § 87(2)(b) stated that he did not see § 87(2)(b) apprehension, but that § 87(2)(b) informed him that after his release he sought medical treatment for a bruise above one of his eyes, cuts to his face, and small scratches along his legs and arms.

§ 87(2)(b) alleged that he asked PO Iacovino to provide the names and shield numbers of all the officers on the scene (**Allegation C**); and at the time of his interview, Sgt. Joseph Marcello of the 120th Precinct, said § 87(2)(b) also asked him for his name and shield number. § 87(2)(b) alleged that instead of responding to his request, PO Iacovino said, “Shut the fuck up” (**Allegation D**).

While § 87(2)(b) and § 87(2)(b) remained in handcuffs, § 87(2)(b) and § 87(2)(b) came to the location and identified § 87(2)(b) as the perpetrator. § 87(2)(b) was arrested and charged with § 87(2)(b); and § 87(2)(b) was released without summons or arrest.

Mediation, Civil, and Criminal Histories

- This case was not eligible for mediation because § 87(2)(b) was arrested.
- On July 2, 2015, a Notice of Claim query was requested. The results of the query will be added to the case file when received (encl. 26).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) was listed as a witness in case § 87(2)(b)
[REDACTED]
- This is the first CCRB case in which § 87(2)(b) has been involved (encl. 3B).
- PO Iacovino has been a member of the NYPD for two years. He has been a subject officer in one past case and one allegation was made against him. § 87(2)(g)
[REDACTED] (encl. 2B).
- PO Schneider has been a member of the NYPD for two years. This is the first case in which he was a subject officer (encl. 2A).

Witness Statements

§ 87(2)(b)

On Nov. 17, 2014, Inv. Venigalla took the following phone statement from § 87(2)(b) (encl. 8):

On Sept. 5, 2014, at about 11 p.m., § 87(2)(b) and her daughter, her son, and her son's friend left the home of § 87(2)(b) mother. § 87(2)(b) daughter is named § 87(2)(b) her son is named § 87(2)(b) and he was § 87(2)(b) at the time, and her son's friend is named § 87(2)(b) and her family walked toward her home. She lives at § 87(2)(b) in Staten Island. § 87(2)(b) walked with her daughter, and her son and his friend rode their bicycles up ahead. Her son and his friend were out of her line of sight. In front of § 87(2)(b) and § 87(2)(b) rode up to § 87(2)(b) § 87(2)(b) told his mother that a man whom he did not know just tried to steal his bicycle, and when he refused to provide his bicycle the man took out a knife and swung it at him. The man whom § 87(2)(b) was talking about came within § 87(2)(b) line of sight, and he was walking toward § 87(2)(b) along with another man. (The investigation identified the man who allegedly swung the knife as § 87(2)(b) and the other man as his brother, § 87(2)(b)

§ 87(2)(b) called 911. About five minutes later, about eight police officers arrived on the scene. § 87(2)(b) spoke with three officers. She could no longer recall what exactly they looked like but thought two of them were white men and one was a white woman. § 87(2)(b) pointed out § 87(2)(b) as the one who had swung a knife at her son.

The officers approached the § 87(2)(b) The officers told § 87(2)(b) to stand against the wall until they could verify he did not have a weapon. § 87(2)(b) began to curse at the officers and back away. When the officers drew closer, he swung his fists at them. Several officers grabbed § 87(2)(b) and the force of the struggle caused them to fall to the ground. Thereafter, he was handcuffed and stood to his feet. The officers searched him pursuant to the arrest, and six-inch knife was recovered from his person. § 87(2)(b) did not observe any injuries on § 87(2)(b) and he did not complain of pain. § 87(2)(b) did not know if § 87(2)(b) was frisked or searched, but he was not handcuffed. The officers told him he could leave, and he left. § 87(2)(b) never heard an officer curse at § 87(2)(b) § 87(2)(b) further identified § 87(2)(b) as the person who had threatened him with the knife, and he and § 87(2)(b) provided the officers with written narratives of the incident. § 87(2)(b) was driven off scene.

§ 87(2)(b)

On Nov. 17, 2014, Inv. Venigalla took the following telephone statement from § 87(2)(b) (encl. 9).

On Sept. 5, 2014, at about 11 p.m., § 87(2)(b) and his friend, § 87(2)(b) rode their bicycles from somewhere on § 87(2)(b) in Staten Island. § 87(2)(b) mother walked behind them. They lost sight of her.

Somewhere along § 87(2)(b) (the investigation determined it was at about § 87(2)(b) and § 87(2)(b) § 87(2)(b) and § 87(2)(b) encountered § 87(2)(b) and § 87(2)(b) § 87(2)(b) told § 87(2)(b) that § 87(2)(b) was someone who had previously tried to steal his bicycle. On this occasion, § 87(2)(b) screamed at § 87(2)(b) in an attempt to have § 87(2)(b) give over his bicycle. § 87(2)(b) and § 87(2)(b) rode away; they rode back to where § 87(2)(b) mother was and told her what had happened. § 87(2)(b) mother told the

boys to ride away and said she would call the police. The boys rode away toward § 87(2)(b)'s home. A short while later, § 87(2)(b) mother called § 87(2)(b) and asked him and § 87(2)(b) to come back. When they returned, § 87(2)(b) and § 87(2)(b) were inside of police cars and handcuffed.

Attempts to Contact Civilians

Between Oct. 10, 2014, and Nov. 17, 2014, the undersigned investigator placed five calls, mailed two letters, and sent one email to § 87(2)(b) without receiving a response from him, and none of the letters were returned by the USPS.

Conclusion

Identification of Subject Officers

- § 87(2)(b) did not learn the officers' names, and he described the subject officers as white men in uniform between 5'6" and 5'7" tall and who appeared to be in their mid-twenties. § 87(2)(g)
- § 87(2)(b) stated that he was handcuffed by an officer, from whom he requested his name and shield number, as well as the names and shield numbers of all responding officers. § 87(2)(b) alleged that PO Iacovino responded with profanity upon request of his name and shield number. § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – PO Joseph Schneider stopped § 87(2)(b)

Allegation B – PO Philip Iacovino stopped § 87(2)(b)

PO Schneider (encl. 15) and PO Iacovino (encl. 17) stated that they responded to the location after receiving a radio run in regards to a woman who had called 911 to report that an

individual had been menaced with a weapon. Complaint report number § 87(2)(b) lists two victims, § 87(2)(b) and § 87(2)(b) who stated that the defendant, listed as § 87(2)(b) displayed a knife and stated “Get the fuck off my block” (encl. 11). § 87(2)(b) who stated that she called 911, corroborated this document (encl. 8). Additionally, a property voucher (encl. X), which was prepared for § 87(2)(b) indicates that a four-inch long black gravity knife was recovered from him at the time of his arrest.

A 911 call from an unidentified citizen will provide the police with reasonable suspicion, especially when the defendant is the only person at the location fitting the description, when the information is sufficiently specific, is corroborated by the officer’s observation, or when the suspect is in close spatial and temporal proximity to the crime. People v. Johnson, 796 N.Y.S.2d 807 (encl. 1).

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B be closed as exonerated.**

Allegation C – PO Philip Iacovino refused to provide his name and shield number to § 87(2)(b)

Allegation D – PO Philip Iacovino spoke rudely to § 87(2)(b)

§ 87(2)(b) (encl. 6) alleged that after he was handcuffed he asked PO Iacovino for his name and shield number, and in response, PO Iacovino allegedly told him, “Shut the fuck up.”

PO Iacovino (encl. 17) stated that when § 87(2)(b) was arrested, § 87(2)(b) was released and that based on Sgt. Marcello’s directive, he asked § 87(2)(b) for his information to complete a police report. At this time, § 87(2)(b) asked PO Iacovino for his name and shield number. In response, PO Iacovino gave him a “police card” that indicated his full name and shield number. According to PO Iacovino, § 87(2)(b) asked PO Iacovino for his license, which PO Iacovino refused to provide. PO Iacovino also stated that § 87(2)(b) asked Sgt. Marcello and PO Schneider for their names and shield numbers. In response, Sgt. Marcello gave § 87(2)(b) a similar card to what PO Iacovino provided and PO Iacovino, who was taking a statement from the victim and his mother at the time, turned toward § 87(2)(b) and pointed to his shield, and § 87(2)(b) read it.

PO Schneider could not recall any civilian asking for his name and shield number and could not recall hearing any officer use profanity. Sgt. Marcello stated that § 87(2)(b) only asked him for his name and shield number.

§ 87(2)(g)

Therefore, it is recommended that **Allegations E and F be closed as unsubstantiated.**

Pod: 13

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date